

23CMCV01867 23CMCV01867

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-02

Motion: DEFENDANTS COUNTY OF LOS ANGELES, LOS ANGELES COUNTY SHERIFF'S DEPARTMENT AND BAO DANG'S MOTION FOR SUMMARY JUDGMENT/ADJUDICATION

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Case Number: 23CMCV01867 Hearing Date: September 2, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

JEANNE-MARIE ALEXANDER, et al.,

Plaintiffs,

vs.

DINE

BRANDS GLOBAL, INC., et al.,

Defendants.

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CASE NO: 23CMCV01867

[TENTATIVE]

ORDER RE: DEFENDANTS COUNTY OF LOS

ANGELES, LOS ANGELES COUNTY SHERIFF'S DEPARTMENT AND BAO DANG'S MOTION FOR
SUMMARY JUDGMENT/ADJUDICATION

Dept.

A

DATE:

September 2, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 11/20/2023

TRIAL:

02/22/2027

MOVING PARTIES: Defendants

County of Los Angeles, Los Angeles County Sheriff's Department, and Bao Dang

RESPONDING PARTIES:

Plaintiffs Jeanne-Marie Alexander, Gauen Rhys Alexander, and Ted Ryley Alexander

1.

Background

On November 20, 2023, Plaintiffs Jeanne-Marie Alexander, Gauen Rhys Alexander, and Ted Ryley Alexander, individually and as heirs to Gordon Glass Alexander, ("Plaintiffs") filed a Complaint against Defendants Dine Bands Global, Inc., Dineequity, Inc., International House of Pancakes, LLC, Timothy William Siaki, City of Carson, County of Los Angeles, Los Angeles County Sheriff's Department, and Deputy John Dean. On May 6, 2024, Plaintiffs filed the operative Second Amended Complaint (SAC) alleging causes of action for (1) survivor action (negligence), (2) wrongful death (general negligence) and negligence per se, (3) dangerous condition of public property, and (4) negligent hiring, training, retention and supervision. In the SAC, Plaintiff added Defendant Deputy Bao Dang ("Deputy Dang") as a Defendant.

Plaintiffs allege the following: On October 26, 2022, decedent Gordon Glass Alexander ("Decedent") was sitting at the outside patio area of an IHOP Restaurant when Defendant Timothy Siaki ("Siaki"), driving a stolen vehicle, crashed into Decedent leaving him critically injured. Decedent passed away in the hospital a week later. Deputy Dang pursued Siaki in violation of the Los Angeles County Sheriff's policy and pursuit procedures with disregard for public safety. Dang's delayed efforts to extricate Decedent exacerbated his injuries because Dang prioritized the apprehension of Siaki's accomplices/passengers instead of properly responding to Decedent's critical injuries.

On September 4, 2025, Plaintiffs identified Doe 1 as Seven Seventy Two Company, Inc. On July 13, 2026, Plaintiffs identified Doe 2 as Thomas Safran & Associates, Inc. and Doe 3 as Thomas Safran & Associates Development, Inc.

On January 16, 2026, Defendants County of Los Angeles (“County”), Los Angeles County Sheriff’s Department (“LASD”), and Deputy Dang (collectively, “Defendants”) filed the instant motion for summary judgment, or in the alternative, summary adjudication. On May 21, 2026, Plaintiffs filed their opposition. On May 28, 2026, Defendants filed their reply.

The court heard oral argument on the motion on August 20, 2026, and continued the hearing for further consideration.

2.

Evidentiary
Objections

Defendant objects to the Declaration of Stephen Baric and Exhibits referenced therein. The Baric Declaration is replete with improper argument, lay opinion and legal conclusions, assertion of facts without personal knowledge or foundation, in addition to failures to authenticate attached exhibits. The court sustains the following objections: 1-16.

3.

Request
for Judicial Notice

Defendants request that the court take judicial notice of Plaintiffs’ three individual government tort claims filed with the County on April 18, 2023. The court will take judicial notice of the filing and contents of the government tort claims, but not the truth of the claims. (Evid. Code, § 452, subd. (c); Gong v. City of Rosemead (2014) 226 Cal.App.4th 363, 369 fn. 1.)

4.

Undisputed
Facts

“An opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the evidence that supports

the position that the fact is controverted.

Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers." (Cal. Rules of Court, Rule 3.1350, subd. (f)(2).) "If the opposing party contends that additional material facts are pertinent to the disposition of the motion, those facts must be set forth in the separate statement ... Each fact must be followed by the evidence that establishes the fact. Citation to the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers."

(Rule 3.1350, subd. (f)(3).) Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence.

Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion. (Code of Civ. Proc. § 437c, subd. (b)(3).)

In Plaintiffs'

Opposition to Defendants' Separate Statement of Undisputed Material Facts, Plaintiffs repeatedly assert improper legal argument under the guise of a "response and supporting evidence," more often than not unsupported by any evidence. At times, evidence is referenced, but not cited by exhibit number or page number. In cases where no evidence is properly cited in the opposition, or where the evidence cited does not create a triable issue as to the proffered fact, the court treats Defendants' facts as undisputed. Plaintiff's Separate Statement of Additional Facts similarly fails to comply with Rule 3.1350 and § 437c (b).

Plaintiffs'

claims against Defendants are based in negligence: (1) a survivor action (negligence), (2) wrongful death (negligence/negligence per se), and (4) negligent hiring, training, retention, and supervision as against County and LASD. (SAC.) It is undisputed that Deputy Dang is and has been a sworn peace officer employed by the LASD since 2007 (UMF 4), and that prior to the incident, the LASD, adopted and promulgated a Vehicle Code policy that complies with the provisions of Vehicle Code section 17004.7. (UMF 5.) Since at least 2007, the LASD has required that its deputies certify in writing that they have received, read, and understood the LASD's pursuit policy upon receipt and upon any amendments to the pursuit policy. (UMF 6.) Since at least 2007, the LASD requires its deputies to complete annual training for

vehicle pursuits pursuant to Vehicle Code section 17004.7. (UMF 7, 9.) Deputy Dang completed training pursuant to Vehicle Code section 17004.7 on June 24, 2022, less than a year before the subject incident. (UMF 10.) Since 2007, Deputy Dang has received law enforcement training required by the State of California, as well as basic medical and annual training on the LASD's pursuit policies. (UMF 11.)

Deputy Dang and his partner Deputy Enrique Gin ("Gin") informed the LASD's Sheriff's Communication Center ("SCC") that they were going to conduct a felony traffic stop of the stolen vehicle. (UMF 19.) Deputy Dang activated his patrol vehicle's red lights and siren in an attempt to conduct a felony traffic stop, but the driver of the stolen vehicle did not pull over and instead accelerated and actively evaded the deputies. (UMF 20.) Within seconds, the driver of the stolen vehicle crossed over into the opposing lanes at which time Deputy Gin advised SCC that the vehicle was traveling on the wrong side of the road and the deputies were going to terminate their pursuit. (UMF 22-23.) However, Deputy Dang continued to follow the vehicle as it continued to evade them, driving in the same direction of the fleeing vehicle. (UMF 24.) Deputy Dang reactivated the emergency lights in an attempt to warn the oncoming vehicles of the suspect's dangerous driving pattern. (UMF 25.) The suspect lost control of the vehicle and collided with Decedent and the IHOP restaurant. The deputies were seconds behind the suspect vehicle and saw the driver, later identified as Siaki exit the vehicle and run away. (UMF 26-27.)

Deputy Dang coordinated the safe removal of the passengers from the vehicle. (UMF 28.) As the first occupant was being removed from the vehicle, Deputy Dang learned that an adult male was pinned between the IHOP restaurant and a metal fence and the vehicle. (UMF 29.)

Within seconds of realizing that Mr. Alexander may be seriously injured, Deputy Dang instructed deputy personnel to radio for emergency medical personnel to respond to the scene to provide Decedent with medical care. (UMF 30.) Seconds earlier, another deputy had requested emergency medical personnel over the radio. (Id.) Once all occupants were safely detained, deputies moved the car and metal fence pinning Decedent against the wall to reduce the chances of Decedent being further injured from a possible fire given the damaged car and the presence of gasoline, and to provide Decedent with medical care until the arrival of paramedics. (UMF 32.) Deputies tried to determine the nature and extent of Mr.

Alexander's injuries and provided any basic first aid they could. Within approximately five minutes of Deputy Dang's request for paramedics, an ambulance and the Fire Department arrived and treated and transported Decedent to Harbor UCLA Medical Center. (UMF 33.)

5.

Discussion

Defendants seek summary judgment on the following grounds: (1) the County and the LASD are entitled to summary judgment based on Vehicle Code section 17004.7 (Issue 1); (2) Deputy Dang is entitled to summary judgment based on Vehicle Code section 17004 (Issue 2); (3) Defendants are entitled to summary judgment against Plaintiffs' negligent rescue theory (Issue 3); (4) Defendants are entitled to summary judgment against Decedent's Estate (Issue 5) and against Plaintiffs Ted Ryley Alexander and Gauen Rhys Alexander to the extent they purport to represent Decedent's Estate (Issue 6), and (5) the LASD is entitled to summary judgment because it is duplicative of Defendant County (Issue 8).

Alternatively, Defendants move for summary adjudication as follows: (1) the County and the LASD are entitled to summary adjudication as to the fourth cause of action for negligent hiring, training, retention and supervision (Issue 4), and (2) Deputy Dang is entitled to summary adjudication against Plaintiffs' claims for punitive damages (Issue 7).

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843 (Aguilar).)

"Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion

for summary judgment or summary adjudication, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log

Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant or cross-defendant moving for summary judgment “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).)

Summary

judgment, as opposed to summary adjudication, is appropriate only where a moving party has established that there are no issues of triable material fact in any of the claims in the action. (24 Hour Fitness, Inc. v. Superior Court (1998) 66 Cal.App.4th 1199, 1216, fn. 12.)

“Once the defendant or cross-defendant

has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code

Civ. Proc., § 437c, subd. (p)(2).) “If

the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Id. at p. 467; Code Civ. Proc., § 437c, subd. (c).)

A trial court may not weigh the parties’ evidence as though it were sitting as the trier of fact. (Aguilar, supra, 25 Cal.4th at p. 856.)

To

establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) A triable issue of material fact exists only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion. (Falcon v. Long Beach Genetics, Inc.

(2014) 224 Cal.App.4th 1263, 1271.)

a. Issue 1: County and LASD Seek Summary Judgment Based on Vehicle Code § 17004.7

Defendants request summary judgment on the grounds of governmental immunity under Vehicle Code § 17004.7. A motion for summary judgment must dispose of the entire action. (Code Civ. Proc., § 437c, subd. (a)(1).) Unlike summary adjudication, a party may not move for summary judgment on a single theory of liability or on a ground that does not dispose of the entire action.

Defendants contend that County and LASD are entitled to summary judgment as to the first and second causes of action pursuant to Vehicle Code § 17004.7. That code section provides that “[a] public agency employing peace officers that adopts and promulgates a written policy on, and provides regular and periodic training on an annual basis for, vehicular pursuits complying with subdivisions (c) and (d) is immune from liability for civil damages for personal injury to or death of any person or damage to property resulting from the collision of a vehicle being operated by an actual or suspected violator of the law who is being, has been, or believes he or she is being or has been, pursued in a motor vehicle by a peace officer employed by the public entity.” (Id., subd. (b)(1).)

However, Plaintiffs allege that County and LASD were negligent not only in the course of the vehicular pursuit, but also in failing to subsequently provide immediate medical care to Decedent and by violating LASD’s policies and procedures in that respect. (See, e.g., SAC ¶¶ 30-32, incorporated by reference into all causes of action.) Plaintiffs’ claims are therefore not disposed of in their entirety by the application of Vehicle Code § 17004.7. As such, irrespective of whether Defendant carried its burden of showing that Vehicle Code § 17004.7 is applicable to the pursuit, Defendants’ request for summary judgment here is procedurally improper.

b. Issue 2: Deputy Dang Seeks Summary Judgment Based on Vehicle Code § 17004

For the foregoing reasons, Deputy Dang’s attempt to obtain summary judgment based upon Vehicle Code § 17004 also fails.

c. Issue 3: Defendants Seek Summary Judgment as to Plaintiff's "Negligent Rescue" Theory of Liability

Defendants' request for summary

judgment solely as to Plaintiffs' "negligent rescue" theory of liability is improper as it is unsupported by governing law. As previously noted, a party may not move for summary judgment solely on a theory of liability, without disposing of the entire action. This request is therefore also procedurally improper. Whether Defendants could have successfully moved for summary adjudication of this issue under its "separate primary right" argument is not before the court. The court therefore denies summary judgment as to Issue 3.

d. Issue 4: Defendants Seek Summary Adjudication as to the Fourth Cause of Action for Negligent Hiring, Training, Retention, and Supervision

Defendants seek summary judgment as to the Fourth Cause of Action on the basis that it lacks a statutory basis.

Plaintiff failed to oppose the motion on this ground.

California courts have firmly established that § 815.2 cannot serve as the statutory basis for a direct claim against a public entity for negligent hiring, training, retention, and supervision.

In *de Villers v. Cnty of San Diego* (2007) 156 Cal.App.4th 238, the Court of Appeal held that "a direct claim against a governmental entity asserting negligent hiring and supervision, when not grounded in the breach of a statutorily imposed duty owed by the entity to the injured party, may not be maintained." The court found no statutory basis for direct liability based on a public entity's negligent hiring and supervision practices, explicitly barring such claims under the framework established by prior authority.

The California Supreme Court affirmed this principle in *C.A. v. William S. Hart Union High Sch. Dist.* (2012) 53 Cal.4th 861, where the court confirmed that a direct liability theory for negligent hiring, supervision, or retention of a public employee requires identification of a specific, independently enacted statute imposing a duty on the entity owed to the injured party. Without such a statute, the claim fails as a matter of law. Section 815.2 does not itself create that independent duty — it only provides a mechanism for imputing an employee's liability to the entity.

Defendants contend that Plaintiff cannot maintain a direct liability theory for negligent hiring, supervision or retention against County and LASD because there is no independently enacted statute imposing a duty on them. However, in addition to alleging a direct liability theory against Defendants in the Fourth Cause of Action, Plaintiff also alleges a vicarious liability theory based upon negligence of “all their employees and sworn deputies” “in the hiring, training, supervision, retention, and disciplining of the deputies involved in the apprehension of Defendant Siaki, as well as the officers who trained the involved deputies throughout their careers, from the academy to the date in question.” (SAC ¶ 92.)

The court finds that Defendants did not meet their burden to show that the fourth cause of action for negligent hiring, training retention, and supervision has no merit. Defendants argue that there is no statutory basis for direct liability based on a public entity's allegedly negligent hiring, training, retention, and supervision practices. (UMF no. 42; Gov. Code, § 815; Searcy v. Hemet Unified School Dist. (1986) 177 Cal.App.3d 792, 798 [“Since the duty of a governmental agency can only be created by statute or ‘enactment,’ the statute or ‘enactment’ claimed to establish the duty must at the very least be identified”]; de Villers v. County of San Diego (2007) 156 Cal.App.4th 238, 252 [“We find no relevant case law approving a claim for direct liability based on a public entity's allegedly negligent hiring and supervision practices”].) While that is the case, the SAC alleges that the County and the LASD's employees and deputies were negligent in the hiring, training, supervision, retention, and disciplining of the deputies involved in the apprehension of Defendant Siaki, as well as the officers who trained the involved deputies throughout their careers, from the academy to the date in question (SAC, ¶ 92) and that the County and the LASD are vicariously liable for the same under Government Code sections 815.2, 815.3 and 820.97. (SAC, ¶ 93.)

Though section 815.3 regards intentional torts and is inapplicable and section 820.97 does not exist, section 815.2 provides that “[a] public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee” (Gov. Code, § 815.2, subd. (a).) Thus, Plaintiffs alleged a claim for negligent hiring, training, retention, and supervision on the basis of vicarious liability pursuant to Government Code section 815.2, in addition to what is arguably a direct liability claim. Here, Defendants fail to address such a claim and thus

failed to meet their burden to show that the fourth cause of action for negligent hiring, training retention, and supervision has no merit.

Defendants also contend that the government claims filed by Plaintiffs do not include any claim for negligent hiring, training, retention, and supervision. However, these claims clearly state that Defendants should have provided more training and oversight to prevent Decedent's injuries and death. (Garibay Decl. ¶ 4, Exs. I-K.) This is sufficient to reflect a negligent hiring, training, retention, and supervision cause of action. Accordingly, the court denies summary adjudication as to the fourth cause of action.

e. Issues 5-6: Defendants Seek Summary Judgment Against the Estate of Gordon Glass Alexander and Against Ted and Gauen

Defendants contend in Issue 5 of the Notice of Motion that they are entitled to summary judgment against the "Estate of Mr. Alexander." Plaintiffs each brought the action in their individual capacities and as heirs of Decedent.

Because the Estate of Mr. Alexander is not a party to the action, and because no plaintiff sued in the capacity as an administrator or representative of the Estate, Issue 5 lacks merit.

In Issue 6, Defendants contend they are entitled to summary judgment against Plaintiffs Ted and Gauen "to the extent they purport to represent the Estate of Mr. Alexander." As discussed above, summary judgment may only be granted if the motion resolves the entire action against the opposing party. Thus, Defendants' limiting "to the extent" language is inapplicable and misplaced. Defendants are entitled to summary judgment against Ted and Gauen Alexander only if the motion resolves the entire action as to each of them. It does not and the motion fails.

First, Defendants argue that Plaintiffs' claims on behalf of the Estate are improper because Plaintiffs' government tort claims do not state that they are brought on behalf of the Estate. However, an argument that Defendants are entitled to summary judgment against the Estate is distinct from an argument that Plaintiffs should not be entitled to assert claims on behalf of the Estate. The Estate is not a party.

In *Nelson v. County of Los Angeles* (2003) 113 Cal.App.4th 783, the court found that because the decedent's estate did not file a claim, and since there was nothing in the decedent's mother's claim that suggested it was filed in anything other than her individual capacity, the survivorship claims were properly resolved against decedent's mother. (*Id.* at p. 797.) Here, Plaintiffs' government claims state that damages include medical expenses and physical and mental pain and suffering. (Garibay Decl., ¶ 4; Exs. I-K.) Thus, Plaintiffs' government claims support a reasonable inference that Plaintiffs intended to file a survivorship claim for the medical expenses incurred by Decedent and Decedent's physical pain and suffering, as Decedent was the only one physically injured.

Defendants argue that Plaintiff Jeanne-Marie Alexander is Decedent's sole beneficiary and received the entirety of his estate (UMF no. 50) and thus, Plaintiffs Gauen Rhys Alexander and Ted Ryley Alexander cannot bring claims on behalf of the Estate. "[D]ecedent's successor in interest' means the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action." (Code Civ. Proc., § 377.11.) Thus, Plaintiff Jeanne-Marie Alexander was entitled to bring the survivor claim.

However, even assuming *arguendo* that only Jeanne-Marie Alexander has standing to bring the survivor claim, the foregoing analysis is inapplicable to Ted and Gauen Alexander's wrongful death action. Pursuant to Code of Civil Procedure section 377.60 a successor in interest includes the decedent's surviving children. (Code Civ. Proc., § 377.60, subd. (a).) Furthermore, "recovery in a wrongful death action belongs to the heirs, not to the decedent or the estate." (*Monschke v. Timber Ridge Assisted Living, LLC* (2016) 244 Cal.App.4th 583, 588.) Thus, Plaintiffs Gauen Rhys Alexander and Ted Ryley Alexander were entitled to bring the wrongful death claim in their individual capacity. Because their wrongful death claim is viable, the motion for summary judgment fails against them.

Because the "Estate of Mr. Alexander" is not a party to the action, and because Defendants did not establish an entitlement to summary judgment against Defendants Gauen and Ted Alexander, the court denies the motion as to Issues 5 and 6.

f. Issue 7: Defendants' Request

for Summary Adjudication of the Punitive Damages Claim Against Deputy Dang

Defendants request that the court grant summary adjudication as to Plaintiffs' punitive damages claims against Deputy Dang because the underlying claims solely sound in negligence and because Plaintiffs failed to allege specific facts demonstrating that Deputy Dang's conduct was willful, wanton, or oppressive. Plaintiffs make no argument in opposition.

For a claim for punitive damages to survive a motion for summary adjudication, the plaintiff must show the presence of malice, oppression, or fraud by clear and convincing evidence. (*Szarowicz v. Birenbaum* (2020) 58 Cal.App.5th 146, 171.) "Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (*College Hospital*, supra, 8 Cal.4th at p. 725 [examining Civ. Code, § 3294, subd. (c)(1)].) "A conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code. In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences." (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895-896 (*Taylor*).)¿

"As amended to include [despicable], the statute plainly indicates that absent an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests.¿The additional component of 'despicable conduct' must be found."¿(*College Hospital*, supra, 8 Cal.4th at p. 725.)¿The statute's reference to despicable conduct represents a "new substantive limitation on punitive damage awards." (*Ibid.*)¿Despicable conduct is "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.¿Such conduct has been described as 'having the character of outrage frequently associated with crime.' "¿(*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287.)

Plaintiffs allege in the SAC that Deputy Dang was negligent in failing to follow the policies and procedures of LASD during the police chase and that he was subsequently negligent by delaying providing medical care to Decedent and by reversing the vehicle pinning Decedent without medical technicians on-site. (SAC ¶¶ 24-34.) Although Plaintiffs allege that Deputy Dang's conduct constituted gross negligence (SAC ¶ 2), this is a legal conclusion, not a

factual allegation. Furthermore, California does not recognize punitive damages for conduct that is grossly negligent, without an element of willfulness and outrage. (Colombo v. BRP US Inc. (2014) 230 Cal.App.4th 1442, 1456, fn. 8.) “Conduct which may be characterized as unreasonable, negligent, grossly negligent or reckless does not satisfy the highly culpable state of mind warranting punitive damages. [Citation.] Conduct which warrants punitive damages must be of ‘such severity or shocking character [as] warrants the same treatment as accorded to willful misconduct—conduct in which defendant intends to cause harm.’ [Citation.]” (Woolstrum v. Mailloux (1983) 141 Cal.App.3d Supp. 1, 10.)

Plaintiffs do not allege that Deputy Dang was aware of the probable dangerous consequences of his conduct and that he willfully caused Plaintiffs’ injuries or acted with willful disregard for Plaintiffs’ interests. The SAC therefore fails to adequately allege punitive damages against Deputy Dang. The court will accordingly grant summary adjudication as to the punitive damages allegations against Deputy Dang.

g. Issue 8: LASD’s Request for
Summary Judgment Due to Duplicative Claims

Defendants argue that the claims against the County and against the LASD are duplicative because the LASD is a department of the County and as such the court should grant summary judgment as to the LASD. (UMF no. 53.) However, Defendants do not cite any published authority clearly stating that any claim naming both a municipality and a department thereof is duplicative. In fact, in one of the unpublished cases cited by Defendants, Daniel v. City of Glendale (2015) 2015 WL 5446924, the court expressly states that the municipality and the police department are separately suable entities. (Id. at p. *3.)

As Defendants have not brought forth any argument as to duplicativeness except that LASD is a department of County, Defendants have failed to carry their burden as to this argument, and the court will deny summary judgment on these grounds.

6.

Conclusion

Based on the foregoing, the court GRANTS IN PART and DENIES IN PART the motion. The court DENIES summary judgment as to all

moving defendants. The court GRANTS Defendant Dang's motion for summary adjudication of Plaintiff's prayer for punitive damages. The court DENIES the motion on all other grounds.

Defendant County is ordered to give notice.

IT IS SO ORDERED.

DATED: September 2, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court